

25PSCV03112 25PSCV03112

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 25PSCV03112 Hearing Date: August 19, 2026 Dept: H

Noriega v. LA

County Fire Department, et al,

Case No. 25PSCV03112

ORDER ON MOTION

TO COMPEL FURTHER DEPOSITION AND DOCUMENT PRODUCTION

1. Plaintiff Christopher John Noriega's motion

to compel further deposition and production of documents is denied as moot, except as to sanctions. The Court grants sanctions in the reduced amount of \$1250.

2. Defendant County of Los Angeles's motion

to compel answer to deposition questions and further testimony of Jay Keenan and to disqualify the law firm Mendez & Sanchez APS from further representing certain percipient witnesses at their deposition is granted in limited part (i.e., as to Question No. A.1 only) but is otherwise denied. The request for disqualification is also denied.

Background

Plaintiff Christopher John Noriega ("Plaintiff")

alleges that on August 4, 2024, Plaintiff sustained injuries from a side-swipe motorcycle versus automobile collision.

On August 27, 2025,

Plaintiff filed a complaint, asserting causes of action against Defendants Los Angeles County Fire Department, County of Los Angeles, City of Los Angeles,

Giobani Rigoberto Lopez Meza, and Does 1-50 for: (1) Negligence, (2) Negligence Entrustment, and (3) Negligent Hiring, Training, Retention, and Supervision.

On December
15, 2025, Plaintiff dismissed City of Los Angeles as a defendant.

1. Plaintiff's
Motion to Compel Further Deposition and Production

Legal
Standard

A party seeking discovery from a person who
is not a party to the action may obtain discovery by oral deposition, written
deposition, or deposition for production of business records. (Code Civ. Proc., § 2020.010.)

Code of Civil Procedure section 2025.480
provides, in relevant part, as follows:

“(a) If a deponent fails to answer any
question or to produce any document, electronically stored information, or
tangible thing under the deponent's control that is specified in the deposition
notice or a deposition subpoena, the party seeking discovery may move the court
for an order compelling that answer or production.

(b) This motion shall be made no later than
60 days after the completion of the record of the deposition,
and shall be accompanied by a meet and confer declaration under
Section 2016.040.”

(Code Civ. Proc., § 2025.480).

Discussion

Plaintiff seeks to compel the production of
following documents noticed in the deposition notice of Deputy Fire Chief
Derrick Chapman:

Request for Production of Documents No. 3

Request for Production of Documents No. 4

Request for Production of Documents No. 5

Request for Production of Documents No. 10

On August 6, 2026, concurrently with the service of the Opposition, Defendant County of Los Angeles served supplemental responses to Request for Production Nos. 3, 4, 5, and 10 were produced. (Declaration of Herbert Hayden ¶ 5.) As a result the Court determines that the motion to compel is moot, except as to sanctions.

Sanctions

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480(j).)

Plaintiff properly noticed his request for sanctions in the amount of \$2,323.41 against Defendants and its attorney of record. (Code Civ. Proc., § 2023.040.)

Plaintiff's counsel asserts that 6.5 hours were spent toward drafting the motion, separate statement and proposed order, as well as engaging in the meet and confer process. (Mikaelyan Decl. ¶ 11.) Plaintiff's counsel anticipates 1.5 hours reviewing opposition and drafting a reply and 1 hour preparing and appearing at the hearing. Plaintiff's counsel proffers a rate of \$250 per hour. (Id.)

Utilizing a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$1,250.00 (i.e., 5 hours at \$250 an hour). Sanctions are payable by Defendants and Defendants' counsel of record within 30 days from the notice of ruling.

2. Defendant's Motion to Compel

Further Deposition Testimony

Legal

Standard

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition for production of business records. (Code Civ. Proc., § 2020.010.)

Code

of Civil Procedure section 2025.480 provides, in the relevant part, as follows:

“(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.”

(Code

Civ. Proc., § 2025.480)

Discussion

County of Los Angeles moves the Court for an order compelling further testimony of non-party witness Christopher Jay Keenan (“Keenan”) at deposition. County of Los Angeles also seeks sanctions against Plaintiff and his counsel of record Alex D. Guerrero (“Guerrero”), jointly and severally, in the amount of \$4,560.00.

Discovery at issue

Question

No. A.1 (Keenan

Depo. 68:9-10, 68:19-21)

Q: "[W]hen did you decide in this case that you need a lawyer?"

Mr. Guerrero: I'm just going to instruct him not to talk – hang on a second. Mr. Keenan, to the extent that that's going to force you to divulge communication that you've had with me or my staff here in my office, I'm going to struct you not to answer that question.

Witness: Thank you

Mr. Harris: Counsel, I'm not asking him – I'm asking him when he decided to retain counsel on this case.

Mr. Guerrero: Right. And what I'm telling you is that the answer to that question is potentially going to divulge attorney-client-privileged communications. And to that extent, that he can only answer that by divulging those communication, I'm going to instruct him not to answer that that question.

Defendant argues that the inquiry as to when the witnessed retained counsel in this matter is not protected by attorney-client privilege.

Plaintiff in his opposition states that the question is improper as it does not explicitly ask for the date the witness retained counsel but asks when the witness decided that he needed a lawyer. Plaintiff further states that attorney-client privilege is absolute.

Here, the Court determines that Defendants were entitled to an answer to the question, and the Court disagrees that an answer could not be provided without divulging attorney-client communications. Attorney-client privilege does not protect independent facts related to communication, such as fact that communication took place and time and date of any participants in communication. (Coy v. Superior Court (1962) 58 Cal. 2d 210, 219-220.)

The motion to compel a further answer is granted as to Question No. A.1.

Question

No. B.1 (Keenan

Depo. 76:17-25)

Question: Now, are you guys in any organized motorcycle club?

The Witness: Alex?

Mr. Guerrero: So I don't think that's reasonably calculated to lead to the discovery of admissible evidence. Well, you know what, it's a yes-or-no question, and you can answer "yes" or "no"

The Witness: Yes.

Defendants

argue that although the witness answered the question, counsel nonetheless coached the witness.

The

State Bar of California Attorney Guidelines of Civility and Professionalism provide that once a question is asked, counsel should not interrupt a deposition or object for the purpose of coaching a deponent or suggesting answers. Counsel should not direct a deponent to refuse to answer or terminate a deposition without a legal basis. Counsel must refrain from self-serving speeches and speaking objections. (State Bar of California Attorney Guidelines of Civility and Professionalism, § 9(a).)

Accordingly, under California law, objections at a deposition must be specific and non-argumentative. Speaking objections and objections designed to coach a witness or suggest answers are improper. (Code Civ. Proc., § 2025.460(b).)

Here,

Mr. Guerrero interrupted only after the witness asked his attorney whether he should wait for an objection or answer the question. Guerrero then objected on relevance grounds but still instructed his client to answer. The Court finds the circumstances described do not amount to coaching and concludes that the

witness provided a sufficient response to the question asked.

The

motion to compel a further answer is denied as to this question.

Question

No. B.2 (Keenan

Depo. 77:2-7)

Question: And what's the name of the club?

Mr. Guerrero: So that's not reasonably calculated to lead to the discovery of admissible evidence. It also violates his constitutional right to privacy. And I'm going to instruct him not to answer.

Defendants

argue that the witness must be compelled to answer the question regarding the name of the club he is associated with because the privacy objection does protect private facts.

Plaintiff

argues that Defendants must demonstrate a very important interest which necessitates the disclosure of the club name.

Here, the Court agrees that compelled disclosure of the name of the motorcycle club would implicate the witness's constitutional right of associational privacy under *Britt v. Superior Court* (1978) 20 Cal.3d 844, 849. Defendants have not demonstrated that disclosure is essential to the fair resolution of the lawsuit.

Accordingly, the motion to compel a further answer is denied as to this question. [FN]

Question No. B.3 (Keenan

Depo. 77:18-21, 77:23-78:2)

Question:

And, to your knowledge, how long has Chris been in this club?" and "Well, do you know if Chris is in an unnamed club with you?"

Mr.

Guerrero: Lacks foundation. He did not testify that Chris was in any unnamed club.

The

Witness: Alex?

Mr.

Guerrero: You can answer it.

The

Witness: Yes.

Here, the Court finds that a sufficient response was provided to the question asked. Further, the Court disagrees with Defendant's argument as to "coaching." The witness sought his counsel's advice as to whether he should answer the question, which does not constitute "coaching."

The motion to compel a further answer is denied as to this question.

Question No. C.1 (Keenan
Depo.81:20-82:9)

Question:

"[N]o beverages or any other refreshments were served on the parking lot?" and
"Is anything served other than alcohol?"

Mr.

Guerrero: It misstates his testimony

Mr.

Harris: You can clarify.

The

Witness: They don't allow drinks outside of the Viper Room, soda – or otherwise.

Mr.

Harris: Well, let me restate my question. Is anything served other than alcohol?

Mr.

Guerrero: Misstates his testimony. He just said that there were no drinks outside. So you're saying other than alcohol?

Defendants argue that the witness's counsel coached the witness during this line of questioning. Furthermore, Defendants argue that whether alcohol or other refreshments were served is reasonably calculated to lead to admissible evidence to show Plaintiff's condition and comparative fault.

Here, the Court finds that Mr. Guerrero did not coach the witness, but stated objections for the record. Furthermore, the witness provided a sufficient answer as to whether drinks were served outside the Viper room.

The motion to compel a further answer is denied as to this question.

Disqualification of Plaintiff's counsel for conflict of interest

Defendants seek to disqualify Plaintiff's counsel under Rule of Professional Conduct 1.7(b) and as adverse representation. That request is denied.

Rule 1.7 of the California Rules of Professional Conduct provides, in relevant part, as follows:

"(a) A lawyer shall not, without informed written consent from each client and compliance with paragraph (d), represent a client if the representation is directly adverse to another client in the same or a separate matter.

(b) A lawyer shall not, without informed written consent from each affected client and compliance with paragraph (d), represent a client if there is a significant risk the lawyer's representation of the client will be materially limited by the lawyer's responsibilities to or

relationships with another client, a former client or a third person, or by the lawyer's own interests."

Here, the Court cannot conclude that the witness's interest is directly adverse to Plaintiff's interest inasmuch as the witness is supporting Plaintiff's claim against Defendants. Therefore, Defendant's request to disqualify Plaintiff's counsel is denied.

Sanctions

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480(j).)

Here, as reflected in the Court's rulings, it appears that Plaintiff acted with substantial justification, and the Court denied most of Defendants' requests. As such, sanctions are declined.

Conclusion

Based on the foregoing, the Court (1) denies Plaintiff's motion to compel further deposition and production of documents as moot, except as to sanctions, and awards Plaintiff sanctions in the reduced amount of \$1,250.00 against Defendants and their attorneys, jointly and severally and (2) grants Defendants' motion to compel further deposition testimony in limited part (i.e., as to Question A.1 only) and otherwise denies the motion.

[FN] In reaching this ruling, the Court admonishes Mr. Guerrero that although associational privacy is a constitutional right, it is not a recognized evidentiary privilege and, as such, generally does not give counsel automatic authority to instruct a witness not to answer unless a protective order is sought or a privilege applies. A constitutional privacy objection preserves the issue, but the proper procedure is typically to object and, if necessary, suspend and seek a protective order. (Code Civ. Proc., § 2025.460, subd. (b).) That said, under the circumstances, because the Court determines that the substantive objection was sound, the Court will not now order the witness to answer.